

The Board of Education of the Brecksville-Broadview Heights City School District met in regular session at ___ p.m. on July 22, 2020 with the following members present via zoom conference:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto and/or notice requirements of HB 197 were complied with for the meeting.

_____ moved the adoption of the following resolution:

**RESOLUTION TO TEMPORARILY SUSPEND SECTION E., BOARD-PAID FRINGE
BENEFITS, SUBSECTION NINE, VACATION DAYS OF THE BOARD-ADOPTED
ADMINISTRATIVE PERSONNEL GUIDELINES WITH REGARD TO ACCRUED UNUSED
VACATION DAYS EARNED DURING THE 2019-2020 SCHOOL YEAR**

WHEREAS, on March 9, 2020 the Governor of the State of Ohio issued Executive Order 2020-01D (“Order”) declaring a state of emergency for the entire State to protect the well-being of the citizens of Ohio from the dangerous effects of COVID-19; and

WHEREAS, on March 22, 2020, the Director of the Ohio Department of Health issued a Stay At Home Order for the State of Ohio through April 6, 2020, which was amended on April 2, 2020 to extend through May 1, 2020 to address the dangerous impact of COVID-19; and

WHEREAS, in conjunction with the Orders directing Ohioans to stay home, the Director of the Ohio Department of Health also issued a March 14, 2020 Order and amended Order on March 30, 2020 directing that all Ohio K-12 schools close until May 1, 2020 apart from performing essential government functions, and clarified that such closure “does not include administrators, teachers, staff, vendors, or contractors of a school,” and that the “administration of each school shall determine the appropriate leave of access to the school during the closure;” and

WHEREAS, the above-referenced Orders directing all Ohio K-12 schools close until May 1, 2020 was extended for the duration of the 2019-2020 school year by announcement of the Governor of the State of Ohio on April 20, 2020; and

WHEREAS, on April 30, 2020, the Director of the Ohio Department of Health issued a Stay Safe Ohio Order that reopens businesses, with exceptions, and continues a Stay Healthy and Safe at Home Order through May 29, 2020 to include the closure of K-12 schools apart from performing essential government functions pursuant to previously issued Orders on March 14th and March 30, 2020; and

WHEREAS, pursuant to the Ohio Department of Health Director's March 22, 2020 Stay at Home Order and amended Order issued on April 2, 2020, public preK-12 schools are designated an essential business for the purposes of facilitating distance learning and shall ensure continued operation, including performing essential government functions, provided that social distancing requirements and recommendations are maintained to the greatest extent possible; and

WHEREAS, during this unique and unprecedented time, the Board and the Superintendent believed it was imperative central office personnel and administrative employees, including the Superintendent and Treasurer, report for duty and perform work essential to their positions with the District and to the continuity of operations of the District during the period of ordered school closure; and

WHEREAS, during the period of school closure, central office personnel and administrative employees, including the Superintendent and Treasurer, continued to report to work to perform essential government functions, including but not limited to, supporting District-wide efforts to facilitate distance learning, assist teachers and non-teachers in the performance of their assigned duties, communicate with students and families and ensure continued operation of District instructional and enrichment programs; and

WHEREAS, given the critical need for administrative support during the period of emergency and school closure, central office personnel and administrators, including the Superintendent and Treasurer, committed to reporting to work daily and sacrificed use of vacation days in order to smoothly transition the District to operating fully remote; and

WHEREAS, in light of the commitment of central office personnel and District administrators, including the Superintendent and Treasurer, to ensure continued operations during the period of school closure, the Board desires to temporarily suspend Section E., Board-provided Fringe Benefits, subsection 9 vacation days of the Administrative Personnel Guidelines to provide eligible central office personnel and administrators, including the Superintendent and Treasurer, an extended period of time in which to utilize vacation days earned during the 2019-2020 school year.

NOW, THEREFORE, BE IT RESOLVED, by the Board of Education that after careful consideration and evaluation of the information before it:

Section 1. The Board hereby temporarily suspends Administrative Personnel Guidelines Section E., Board-provided Fringe Benefits, subsection 9 vacation days to permit eligible central office personnel and administrators, including the Superintendent and Treasurer, who earned vacation days during the 2019-2020 school year to carryover unused vacation from the 2019-2020 school year only to be used on or before December 31, 2021.

Section 2. The Board hereby further suspends Administrative Personnel Guidelines Section E., Board-provided Fringe Benefits, subsection 9 vacation days to permit *only* eligible administrators, including the Superintendent and Treasurer, with less than ten (10) years of District experience to be paid up to ten (10) days of accumulated but unused vacation earned during the 2019-2020 school year only.

Section 3. All other provision of the Administrative Personnel Guidelines, including provisions a part of or relevant to subsection 9 vacation days remain unaltered and full force and effect.

Section 4. The Superintendent and/or Treasurer are hereby authorized and directed to take all other such actions as are necessary or appropriate to accomplish the objectives of this Resolution.

Section 5. The Board finds and determines that all formal actions of this Board concerning and relating to the adoption of this Resolution were adopted in an electronic meeting of this Board in compliance with all legal requirements, including HB 197 and as permitted by Ohio law.

Section 6. This Resolution shall take effect and be in force from and after the earliest period allowed by law.

_____ seconded the motion and roll begin called upon the question of the adoption of the Resolution, the vote resulted as follows:

_____	_____
_____	_____

CERTIFICATE

The undersigned hereby certifies that the foregoing is a true and correct copy of the resolution adopted at a meeting held on July 22, 2020, together with a true and correct extract from the minutes of said meeting to the extent pertinent to consideration and adoption of said resolution.

Craig G. Yaniglos, Treasurer